

25STCV18384 25STCV18384

County: los-angeles

Division: Civil Law and Motion

Department: 513

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Case Number: 25STCV18384 Hearing Date: August 24, 2026 Dept: 513

Superior

Court of California

County of

Los Angeles – Central District

Department 513

Lisette herrera

;

Plaintiff,

vs.

Jaguar Land Rover north

America, LLC

, et al.,

Defendants.

Case No.:

25STCV18384

Hearing Date:

August 24, 2026

Time:

10:00 a.m.

[Tentative] Order RE:

Demurrer

to Complaint and MOTION TO STRIKE

MOVING PARTY: Defendants Jaguar Land Rover North
America, LLC, and Jaguar Land Rover Woodland Hills

RESPONDING

PARTY: Plaintiff Lissette Herrera

Demurrer to Complaint
and Motion to Strike

The court considered the moving,
opposition, and reply papers filed in connection with this demurrer and motion.

DISCUSSION

Demurrer to Complaint

Defendants Jaguar

Land Rover North America, LLC, and Jaguar Land Rover Woodland Hills ("Defendants")
demur to the fifth cause of action for negligent repair and sixth cause of
action for fraudulent concealment asserted in the Complaint filed by plaintiff Lissette
Herrera ("Plaintiff").

The court overrules

JLR Woodland Hills's demurrer to the fifth cause of action for negligent repair
because it states facts sufficient to constitute a cause of action since (1) the
court finds that it is not barred by the economic loss rule because it is based
on JLR Woodland Hills's breach of its duty to use ordinary care and skill in the
storage, preparation, and repair of the subject vehicle in accordance with industry

standards (Compl., ¶ 48), and therefore does not arise from any underlying contract between Plaintiff and JLR Woodland Hills, and (2) Plaintiff has sufficiently alleged that JLR Woodland Hills's breach of its duties proximately caused Plaintiff's damages (Compl., ¶ 49). (Code Civ. Proc., § 430.10, subd. (e); Sheen v. Wells Fargo Bank, N.A. (2022) 12 Cal.5th 905, 923; Berkley v. Dowds (2007) 152 Cal.App.4th 518, 527 ["Ordinarily, negligence may be alleged in general terms"].)

The court sustains

Defendants' demurrer to the sixth cause of action for fraudulent inducement – concealment because it does not state facts sufficient to constitute a cause of action since Plaintiff has not alleged that Defendants had a duty to disclose the facts regarding the subject defects in the vehicle, including because Plaintiff has not alleged facts establishing that they purchased the vehicle directly from Defendants or its agent and that, during the course of those direct dealings, Defendants concealed facts regarding the defects from Plaintiff. (Code Civ. Proc., § 430.10, subd. (e); Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 40-41 [circumstances imposing a duty to disclose "presuppose a preexisting relationship between the parties" which "must necessarily arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large"]; Dhital v. Nissan North America, Inc. (2022) 84 Cal.App.5th 828, 844, review dismissed Dec. 18, 2024 [finding complaint sufficient and declining to hold claim barred on the ground that there was no relationship requiring Nissan to disclose known defects where plaintiffs alleged they bought the car from a Nissan dealership, that Nissan backed the car with its warranty, and Nissan's authorized dealerships are its agents for purposes of the sale of Nissan vehicles to consumers].)

The burden is on the

plaintiff "to articulate how it could amend its pleading to render it sufficient." (Palm Springs Villas II Homeowners Assn., Inc. v. Parth (2016) 248 Cal.App.4th 268, 290.)

To satisfy that burden, a plaintiff "must show in what manner he can amend his complaint and how that amendment will change the legal effect of his pleading." (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.)

The court finds that Plaintiff has not articulated the facts that she could allege to render the sixth cause of action against FCA sufficient and therefore sustains the demurrer without leave to amend.

Motion to Strike

Defendants move

the court for an order striking from the Complaint Plaintiff's prayer for punitive damages.

The court grants

Defendants' motion to strike Plaintiff's prayer for punitive damages because Plaintiff has not alleged facts establishing that Defendant is guilty of oppression, fraud, or malice. (Civ. Code, § 3294, subd. (a).) The court grants Defendants' motion without leave to amend because Plaintiff has not articulated the facts that she could allege to render her claim for punitive damages sufficient against Defendant. (Palm Springs Villas II Homeowners Assn., Inc., *supra*, 248 Cal.App.4th at p. 290.)

ORDER

The court

SUSTAINS defendants Jaguar Land Rover North America, LLC, and Jaguar Land Rover Woodland Hills's demurrer to plaintiff Lissette Herrera's sixth cause of action without leave to amend.

The court OVERRULES

defendants Jaguar Land Rover North America, LLC, and Jaguar Land Rover Woodland Hills's demurrer to plaintiff Lissette Herrera's fifth cause of action.

The court GRANTS defendants

Jaguar Land Rover North America, LLC, and Jaguar Land Rover Woodland Hills's motion to strike without leave to amend. The court orders that plaintiff Lissette Herrera's prayer for punitive damages (set forth on page 13, section e, line 7 of the Complaint) is stricken.

The court orders defendants

Jaguar Land Rover North America, LLC, and Jaguar Land Rover Woodland Hills to file an answer to plaintiff Lissette Herrera's Complaint within 10 days of the date of this order.

The court orders defendants

Jaguar Land Rover North America, LLC, and Jaguar Land Rover Woodland Hills to give notice of this ruling.

IT IS SO ORDERED.

DATED: August 24, 2026

Robert B. Broadbelt III

Judge of the Superior Court